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Van Opstal

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(54) **LEUCOTHOE PLANT NAMED ‘CURLY RED’**

(50) Latin Name: *Leucothoe axillaris*
Varietal Denomination: **CURLY RED**

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(*) Notice: Subject to any disclaimer, the term of this
patent is extended or adjusted under 35
U.S.C. 154(b) by 138 days.

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(51) **Int. Cl.**
A01H 5/00 (2006.01)

(52) **U.S. Cl.** **Plt./373**

(58) **Field of Classification Search** Plt./373,
Plt./226

See application file for complete search history.

(56) **References Cited**

PUBLICATIONS

GTITM UPOV Citation for ‘Curly Red’ as per QZ PBR
20011519, Sep. 23, 2002.*

GTITM UPOV Citation for ‘Curly Red’ as per NL PBR
LCT0002, Sep. 21, 2001.*

* cited by examiner

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(57) **ABSTRACT**

A new cultivar of *Leucothoe* named ‘CURLY RED’ that is
characterized by curled growth of the foliage which in its
spring season of new growth exhibits burgundy red coloration
which turns purple in summer and turns dark green as
the plant matures. This trait sets ‘CURLY RED’ apart from
all other existing varieties of *Leucothoe* known to the
inventor.

2 Drawing Sheets

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Genus: *LEUCOTHOE*.

Species: *axillaris*.

Denomination: ‘CURLY RED’.

BACKGROUND OF THE INVENTION

The present invention relates to a new and distinct cultivar
of *Leucothoe* that is grown for use as an ornamental plant in
the landscape and as a decorative indoor foliage plant. The
new cultivar is known botanically as *Leucothoe axillaris* and
will be referred to hereinafter by the cultivar name ‘CURLY
RED’. In 1996, the inventor, a commercial grower of
acid-loving plants including *Gaultheria*, *Pieris* and *Leuco-*
thoe observed in his crop of *Leucothoe axillaris* variety
‘Zebld’ (unpatented, also sold under the trade name
Scarletta) a single plant which exhibited highly unusual
curling and reddening of the foliage, particularly the new
foliage growth. The inventor removed and isolated this
naturally occurring whole plant mutation, not knowing
whether the curling of the leaves was the result of a
pathogenic problem or a spontaneous and permanent genetic
mutation.

The inventor observed that as the single isolated plant
continued to grow, its characteristics remained stable—that
is, the foliage of the growing plant retained the characteristic
curling and purple-red coloration as herein described. The
inventor carried out the first asexual propagation of ‘Curly
Red’ in the summer of 2001, in Boskoop, The Netherlands
by taking stem cuttings from the current year’s shoot
growth. The resulting plants were compared with the original
plant discovered. All plants resulting from the first and
subsequent cycles of asexual propagation have remained
stable and have been determined by the inventor to repro-
duce true to the ‘Curly Red’ type, with no “reversion” to the
characteristic leaf type of all cultivars of the species *LEU-*
COTHOE axillaris known to the inventor, including
‘Zebld’, none of whose leaves curl at all. However, the new
spring growth of the foliage of all cultivars of *LEUCOTHOE*

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axillaris does tend to emerge with a reddish-brown coloration.

When compared with the parental cultivar ‘Zebld’,
‘CURLY RED’ is observed to have an identical form and
characteristics, with the exception that the new spring
growth of ‘CURLY RED’ emerges and remains noticeably
curled, whereas the foliage of ‘Zebld’ emerges and remains
flattened as is typical of other known cultivars of the species
LEUCOTHOE axillaris. The color of the curled leaves of
‘CURLY RED’ tends towards purple-red whereas the color
of the emerging leaves of ‘Zebld’ tends towards reddish-
brown.

The inventor filed an application for European Commu-
nity Plant Variety Rights for ‘CURLY RED’ on Nov. 5,
2001, application serial number 20011519, and subsequently
granted on Sep. 23, 2002, grant number 10129. The inventor
also filed in The Netherlands an application for Netherlands
Plant Breeders Rights, application number PBR LCT002,
which was published on Sep. 21, 2001.

‘CURLY RED’ was first shown to the public as specimen
plants in the inventor’s booth at the Plantarium Nursery
Show in Boskoop, The Netherlands, in August 2003. The
inventor retained control and possession of all of his plants
of ‘CURLY RED’ until the first sale and delivery which took
place in August 2004. ‘Curly Red’ shared with three other
plant varieties, the award of “most striking plant novelty” at
the Aalsmeer Flower Market in November 2004.

SUMMARY OF THE INVENTION

The distinguishing characteristic of the new *Leucothoe*
cultivar ‘CURLY RED’ is the curled growth of the foliage
which in its spring season of new growth exhibits burgundy
red coloration which turns purple in summer and turns dark
green as the plant matures. This trait sets ‘CURLY RED’
apart from all other existing varieties of *Leucothoe* known to
the inventor.

BRIEF DESCRIPTION OF THE DRAWINGS

The accompanying color drawing illustrates the overall appearance of the new *Leucothoe* variety 'CURLY RED' showing the colors as true as it is reasonably possible to obtain in colored reproductions of this type. Colors in the drawings may differ from the color values cited in the detailed botanical description, which accurately describes the actual colors of the new variety 'CURLY RED'.

The drawing labeled as FIG. 1 illustrates a whole plant which is approximately twenty seven months old from a cutting. The cutting was rooted in a frost-protected greenhouse in spring 2002, potted in a 1.5 liter container in late 2002 and allowed to grow for a further 18 months without pinching. The drawing depicts the growth in summer, after the new season's red coloration has begun to change to purple and then later in the year, to very dark green. The entire growth cycle took place at the Inventor's nursery in Zundert, The Netherlands.

The drawing labeled as FIG. 2 illustrates a close-up view of the characteristic curled and reddened new foliage growth which appears in spring. The drawings were made using conventional techniques and although foliage colors may appear different from actual colors due to light reflectance, they are as accurate as possible by conventional photography.

BOTANICAL DESCRIPTION OF THE PLANT

The following is a detailed description of the *Leucothoe* cultivar named 'CURLY RED'.

Data was collected in Zundert, The Netherlands from a two years old plant which had been grown as follows: A cutting of 'CURLY RED' was rooted in a frost-protected greenhouse in spring 2002, potted in a 1-liter container in late 2002 and allowed to grow for a further 18 months without pinching.

Color determinations are in accordance with the 2001 Edition of The Royal Horticultural Society Colour Chart except where general color terms of ordinary dictionary significance are used.

Botanical classification:

Genus.—*Leucothoe*.

Species.—*axillaris*.

Denomination 'Curly Red'.

Use: Ornamental.

Parentage: 'CURLY RED' is a naturally occurring whole plant mutation of the variety of *Leucothoe axillaris* known as 'Zeblid'.

Type: Evergreen shrub.

Vigor: Low vigor, approximately 10 cm–12 cm new growth per season.

Habit: Upright.

Plant shape: Flattened globular.

Height (at maturity): 40 cm. in height.

Width (at maturity): 45 cm. in width.

Hardiness: USDA Zone 7.

Propagation: Propagation is most effectively carried out by taking firm tip cuttings in summer from the current year's shoot growth. Under these conditions, no rooting chemical or hormone is believed to be necessary or beneficial.

Root system: Very fine.

Soil: Moist acidic soil, ideally with pH value between 4.2 and 5.0

Sunlight: Full sun to semi-shade.

Time to initiate rooting: Slow: Approximately 8 weeks are needed to produce roots on an initial cutting.

Temperature to initiate rooting: 20° to 25° Centigrade substrate temperature.

Crop time: 24 months are needed to produce a finished 1.5 liter container from a rooted cutting.

Disease and pests: No specific susceptibility or resistance has been observed.

Stem:

Stem diameter.—5 mm.

Stem length.—40 cm.

Stem shape.—Rounded.

Surface.—Smooth, dull.

Strength.—Strong.

Pubescence.—None.

Lenticels.—None.

Stem color.—138B.

Basal branching.—None.

Lateral branch dimensions.—25 cm in length, 3 mm in diameter.

Internode length.—1.0 cm–1.5 cm between nodes.

Lateral branching.—Naturally occurring: approximately 50 lateral branches without pinching.

Foliage:

Type.—Evergreen.

Leaf arrangement.—Alternate.

Leaf division.—Simple.

Number of leaves per lateral branch.—Approximately 25.

Leaf attachment.—Petiolate.

Leaf dimensions.—2.9 cm in length and 2.5 cm. in width.

Leaf shape.—Ovate.

Leaf curling.—Tip strongly curved downwards, tip occasionally recurves to touch leaf underside. Curled tips cannot be uncurled without breaking.

Leaf base.—Shallowly cordate.

Leaf apex.—Acute.

Leaf venation.—Pinnate.

Leaf margin.—Serrate.

Leaf color (spring growth at most intense red stage, adaxial surface).—46A, midrib and veins 161C.

Leaf color (spring growth at most intense red stage, abaxial surface).—46A where surface unbroken; tends to 46D towards tip and if surface broken.

Leaf color (summer growth at most intense purple stage, both surfaces).—59B and 59C.

Leaf color (mature leaf, adaxial surface).—Very dark green; between 139A and N189A but much darker.

Leaf color (mature leaf abaxial surface).—138B.

Midrib and veins.—Prominent on adaxial (convex) surface; absent on abaxial surface. Vein color (spring, summer): 161C. Vein color (mature): 143C.

Leaf surface (both surfaces).—Strongly bullate, thick, leathery, glossy except in spring when abaxial surface of recurved tip may be broken, rough.

Petiole dimensions.—Up to 3 mm in length, 1.8 mm in diameter.

Petiole color.—143C.

Petiole surface.—Smooth.

Flowers: Although vestigial flowers may be present in apex, none have been observed.

Reproductive organs: Not observed.

Seed: None observed.

What is claimed is:

1. A new and distinct variety of *Leucothoe* plant named 'CURLY RED' as described and illustrated.

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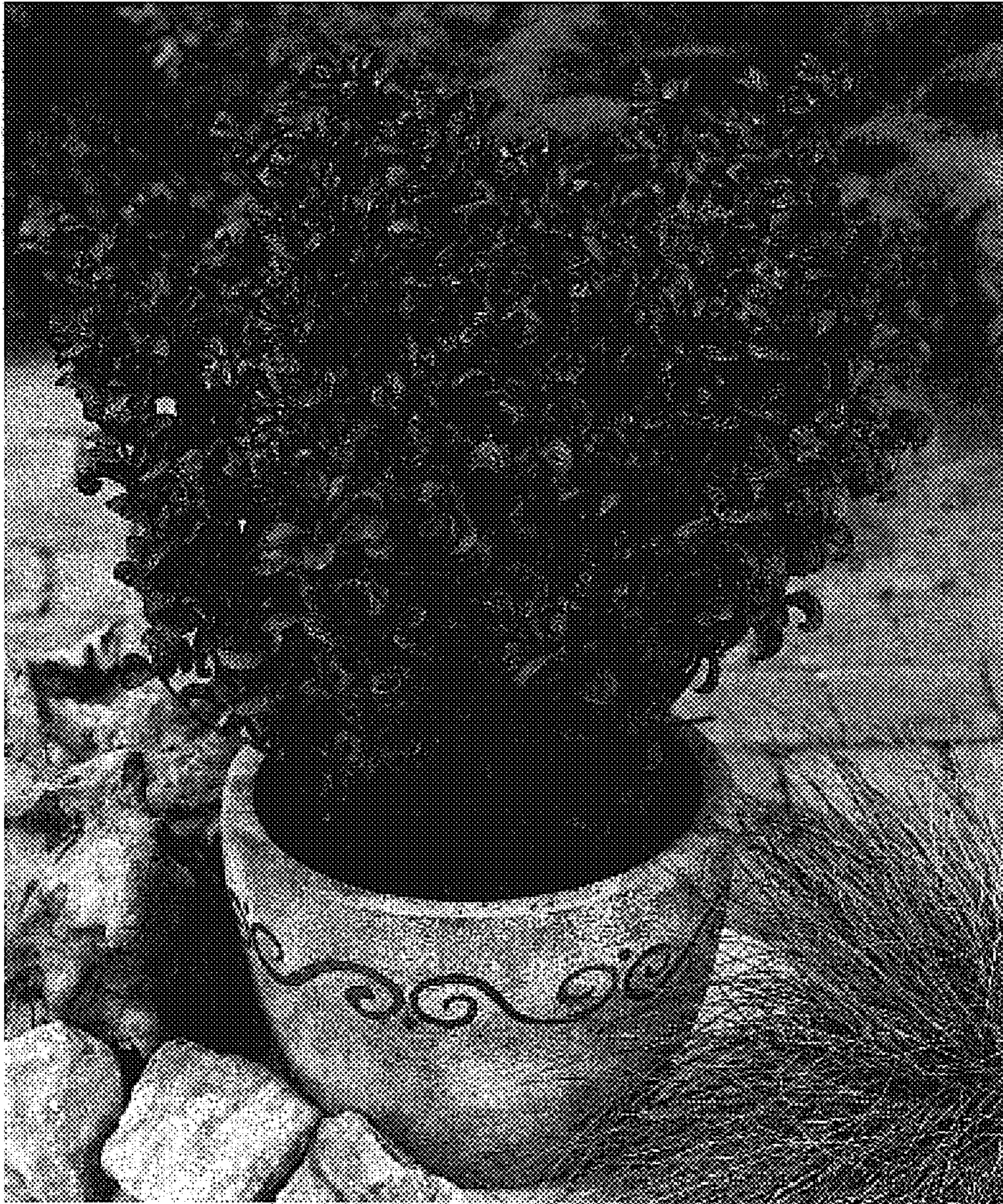


FIG. 1



FIG. 2